



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/11/2026 - 09:00 AM

09/02/2026

3:20 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

22-PRO-01380	Conservatorship of Ella C Jonsson	
Line 5	Proposed Conservatee: Jonsson, Ella C (FRIEDMAN, SHERRIE S.) Petitioner: Jonsson, Amy (FALK, MARY S. BURGUENO, JESSIE JULIAN) Petitioner: Jonsson, Patric (FALK, MARY S. BURGUENO, JESSIE JULIAN) Conservatee: Jonsson, Ella C (FRIEDMAN, SHERRIE S.) Proposed Conservator: Jonsson, Amy Proposed Conservator: Jonsson, Patric Conservator: JONSSON, AMY (FALK, MARY S.) Conservator: JONSSON, PATRIC (FALK, MARY S.)	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist. The co-conservators are ordered to file an amended Order Appointing Conservator and Letters of Conservatorship within fifteen (15) days as discussed in the Investigator's Review Report filed on 8/19/2026. A status hearing is set on <u>January 29, 2027 at 9:00 am</u> to confirm the filing of the amended documents. If Conservators fail to file the amended documents as ordered, the Court intends to issue an order to show cause to the Conservators as to why they should not be sanctioned or removed. The Private Defender is discharged.		
23-PRO-01075	Conservatorship of Clotilde De Luca	Continued from 04/15/26 PETITION FOR THE FIRST ACCOUNTING OF THE CONSERVATORSHIP OF CLOTILDE DE LUCA- Continued from 04/15/26
Line 6, 7	Proposed Conservatee: De Luca, Clotilde (DURRANS, KATHLEEN A.) Petitioner: Basualdo, Patrizia De Luca (CROWLEY, JOHN K.) Conservatee: De Luca, Clotilde (DURRANS, KATHLEEN A.) Conservator: Basualdo, Patrizia De Luca	Conservatorship Review - Biennial Petition Hearing



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Tentative Ruling:

APPEARANCE OPTIONAL

Disappointingly, the Amended Petitions for First Accounting of both the Conservatorship of Clotilde De Luca and the De Luca Family trust create more questions than they resolve. First and foremost, who is "Estrella Clotilde De Luca" repeatedly referenced in the lodged financial records? One might assume that is the Conservatee, but not a single pleading or document in support of the Conservatorship identifies her as such.

Why is the house on Hudson, which has been alleged in a declaration filed by petitioner to be a part of the Trust, listed in the Conservatorship estate I&A filed 12/20/24? The real estate on the inventory is not appraised by a California Probate Referee as required, and the Court does not waive this requirement if the real property is in the Conservatorship estate. Why is there no Attachment 1 to the Corrected I&A filed 7/24/26? What constitutes the change in value between the two I&As? The inventory and appraisal should be amended to reflect the actual assets on hand at the beginning of account.

(1) The Assets on Hand at the beginning of the accounting period do not match the Inventory and Appraisal filed. On December 20, 2024, Petitioner filed an inventory with a total value of \$2,177,670. On July 24, 2026 Petitioner filed an inventory – supplemental with a total value of \$2,197,410 (this filing is missing the attachments). The inventory reflected on the accounting is \$2,140,452.35.

(2) The IRA and Vanguard account is valued on the Inventory and Appraisal at \$100,000 which does not match the inventory on the accounting. The accounting opening sum does match the statement, correctly reflecting the value of \$49,925.81.

(3) The Wells Fargo Bank account ending in 4010 is not listed on the inventory and appraisal. The accounting opening sum does match the statement, correctly reflecting the value of \$12,856.54.

The following also requires further detail:

Repairs and Upgrades: Petitioner details \$11,059.95 for repairs and upgrades, in addition to the \$17,183.92 listed in disbursements. Further explanation should be provided. While it is clear that Petitioner completed numerous necessary home improvements, the detail should reflect those improvements and purchases.

Cryptocurrency: There are \$24,800 in Disbursements made to Cryptocurrency Exchanges (Coinbase, Uphold and Kraken) listed on a "Change in Form of Assets" Schedule identified as "Receivables" owed by the conservator. Unlike the first filing, there are no similar disbursements listed so it is unclear if these were paid from the conservatee's trust. Petitioner alleges those sums were repaid in December 2025. Petitioner's declaration does not sufficiently clarify this issue. Further clarification/explanation is required.

Auto expenses: Conservator claims that she has a single vehicle, which she uses exclusively for the benefit of the conservatee. This does not seem very credible, in light of her own assertion that



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she owns two properties, which means she has to obviously expend time and travel attending to them. The Conservatee estate should not be expending any resources for Conservator's auto insurance, auto maintenance, gas, etc.

Life Insurance Policy: It is commendable that Conservator has taken out a life insurance policy naming Conservatee as its only beneficiary. That does not necessarily mean it is chargeable to the conservatee estate if it was done without court approval. The court would be willing to consider this as a legitimate cost, but petitioner would have to submit a complete copy of the policy in a supplement.

The Conservatorship bond is set at \$123,000.

Petition and the Review Hearing are CONTINUED to January 28, 2027 at 9:00 am for Petitioner to correct and/or provide additional information regarding these issues:

24-PRO-00447	IN THE MATTER RE: THE WILLIBALD J. SPITZ TRUST	Status RE: Settlement OR Trial Setting Conference- Continued from 07/09/26
Line 8	Petitioner: First-Citizens Bank etc. (LEE, JAMAY) Decedent: SPITZ, WILLIBALD Respondent: Spitz, Perry (DOWLING, DONALD J.)	Status Hearing

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed) [Related matters at lines 1 and 8]

Parties are ordered to appear for trial setting.

26-PRO-00324	Guardianship of Anderson Orlando De Leon Hernandez	Continued from 08/13/26 Continued from 08/13/26
Line 9, 10	Petitioner: De Leon Hernandez, Anderson Orlando (GARZON, MARCO) Ward: De Leon Hernandez, Anderson Orlando Proposed Guardian: De Leon Hernandez, Daykla Zulema	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings